

24STCV33454 24STCV33454

County: los-angeles

Division: Civil Law and Motion

Department: 408

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Case Number: 24STCV33454 Hearing Date: August 13, 2026 Dept: 408

Plaintiff

Juliet Annerino's Motion for

Reconsideration is DENIED.

I.

BACKGROUND

On December 18, 2024, Plaintiff Juliet

Annerino ("Plaintiff") filed a complaint against Defendants AIG Specialty

Insurance Company ("AIG"), American Bankers Insurance Company of Florida

("American Bankers"), and Consumerinfo.com dba Experian Consumer Services ("ECS",

collectively "Defendants") alleging causes of action for:

1.

Breach of

Contract;

2.

Breach of the

Implied Covenant of Good Faith and Fair Dealing; and

3.

Negligence.

On February 6, 2025, AIG and ECS filed individual

answers to Plaintiff's complaint.

On March 6, 2025, American Bankers filed

an answer to Plaintiff's complaint.

On August 26, 2025, the court granted ECS' Motion to Compel Arbitration; denied AIG's Motion for Joinder to Motion to Compel Arbitration; and denied ECS' Motion for Protective Order as moot.

On June 11, 2026, Plaintiff filed this Motion for Reconsideration. On July 30, 2026, AIG filed an opposition. As of August 6, 2026, no reply has been filed.

II.

LEGAL STANDAR AD

Code of Civil Procedure section 1281.2 provides, in relevant part, as follows: "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

(c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. For purposes of this section, a pending court action or special proceeding includes an action or proceeding initiated by the party refusing to arbitrate after the petition to compel arbitration has been filed, but on or before the date of the hearing on the petition."

(Code Civ. Proc., § 1281.2, subd. (c).)

Code of Civil Procedure

section 1281.4 provides as follows: "If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies." (Code Civ. Proc., § 1281.4.)

III.

DISCUSSION

Plaintiff seeks to stay the court ordered arbitration between ECS and Plaintiff and allow the nonsignatory insurer claims against AIG and American Bankers to proceed in this court first. (Motion, at pp. 1-2.) Plaintiff argues that a possibility of conflicting rulings triggers the exception to arbitration of Code of Civil Procedure Section 1281.2(c) as Plaintiff's claims against ECS involve overlapping issues with the coverage claims asserted against AIG and American Bankers. (Id., at pp. 5-8.)

As an initial matter, the court finds that the instant motion is untimely under Code of Civil Procedure section 1008(a) as it was not filed within 10 days after service upon the party of written notice of entry of the order granting ECS' Motion to Compel Arbitration on August 26, 2025. (Code Civ. Proc., § 1008, subd. (a).)

The court also notes that Section 1281.2 appears to contemplate exceptions in the context of a petition to compel such arbitration. (Code Civ. Proc., § 1281.2.) As this is not a petition to compel arbitration and such motion was previously granted, Plaintiff has not provided any relevant authority to grant the relief requested due to the possibility of conflicting rulings in the context of an arbitration that is already proceeding.

Additionally, once a matter has been stayed pending a decision through arbitration, courts retain only "vestigial jurisdiction" to address certain issues. (Williams v. W. Coast Hosps., Inc. (2022) 86 Cal. App. 5th 1054, 1068-1069; Brock v. Kaiser Foundation Hospitals (1992) 10 Cal.App.4th 1790, 1796.) The court does not appear to have jurisdiction to lift the stay or withdraw arbitration as the court's "vestigial jurisdiction over the action at law consists solely of making the determination, upon conclusion of the arbitration proceedings, of whether there was an award on the merits (in which case the action at law should be dismissed because of the res judicata effects of the arbitration award) or not (at which point the action at law may resume to determine the rights of the parties).'" (Cinel v. Christopher (2012) 203 Cal.App.4th 759, 769 [citations omitted].)

Accordingly, the motion is denied.

IV.

CONCLUSION

Plaintiff

Juliet Annerino's Motion for Reconsideration is DENIED.